DEVELOPMENT REVIEW COMMITTEE, PASCO COUNTY, FLORIDA

MINUTES

THE MINUTES WERE PREPARED IN AGENDA ORDER AS PUBLISHED AND NOT IN THE ORDER THE ITEMS WERE HEARD

JUNE 26, 2008

1:30 P.M. – West Pasco Government Center, Board Room, 7530 Little Road, New Port Richey, FL 34654-5598

DEVELOPMENT REVIEW COMMITTEE

John J. Gallagher
County Administrator
Michael Nurrenbrock
OMB Director
Daniel R. Johnson
Assistant County Administrator
(Public Services)
Bruce E. Kennedy, P.E.
Assistant County Administrator
(Utilities Services)
Bipin Parikh, P.E.
Assistant County Administrator
(Development Services)
Chris Williams
District School Board of Pasco County

LEGAL COUNSEL

David A. Goldstein,
Senior Assistant County Attorney

ADVISORY STAFF

Cynthia M. Jolly, P.E.
Development Director
Samuel P. Steffey II
Growth Management Administrator
James C. Widman, P.E.
Engineering Services Director
Debra M. Zampetti
Zoning/Code Compliance
Administrator
Ahsan Khalil
Transportation Planner II
Paul J. Montante
Technical Specialist II
Representative of the Clerk
of the Circuit Court
Frank Schlotter
Division Engineer
Michele Baker
Chief Assistant County Administrator

ROLL CALL

Ms. Donalee Schmidt, Deputy Clerk, called the roll. All members were present.

Ms. Schmidt swore in everyone who planned to present testimony.

MINUTES

M1 June 7, 2007 DRC Minutes – DRC – Minutes for Approval.
Memorandum DR08-1549
Recommendation: Approve

M2 August 23, 2007 DRC Minutes – DRC – Minutes for Approval.
Memorandum DR08-1550
Recommendation: Approve

MR. NURRENBROCK MOVED approval of the Minutes of June 7, 2007 and August 23, 2007.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

PUBLIC HEARINGS

VARIANCE PETITIONS
GROWTH MANAGEMENT

P1 Southport Springs, Phase IV – Variance Request from LDC 402.6.B.1, Expiration of LOS – Southport Springs, Ltd., Partnership – LOS Expired.
Location: On the West Side Zephyr Springs Parkway, approximately 850 feet north of Chancey Road; Section 17, Twn 26 S, Rng 21 E
Memorandum GM08-370
Recommendation: Denial of Variance

Mr. Frank Schlotter recommended the item be continued.

Mr. Ben Harrill, representative, requested the item be continued to July 24, 2008, due to a notice issue.

There was no public comment.

MR. NURRENBROCK MOVED to continue the item to July 24, 2008, at 1:30 p.m. in Dade City.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

ZONING/CODE COMPLIANCE

P2 Christine Hankerson – Zoning Variance Request (ZN08-1967) – Christine Hankerson – For a reduction in the required minimum rear setback from 10' to 1.4' for a room addition. Location: On the east side of Sassafras Drive, approximately 350 feet north of Pasco-Hillsborough County Line Road within Meadow Pointe, Parcel 12, Unit 1; Section 33, Twn 26 S, Rng 20 E
Memorandum ZN08-1967
Recommendation: Approval with conditions

Mr. Lee Millard explained the item. Staff recommended approval with conditions.

Ms. Christine Hankerson agreed with Staff's recommendation.

There was no public comment.

MR. NURRENBROCK MOVED approval of Staff's recommendation.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

P3 Zoning Variance Request – Goodforest, LLC – Please refer to the agenda memo for the variance request. Location: On the northeast corner of the intersection of S.R. 56 and Bruce B. Downs Boulevard (S.R. 581) within the Shops at Wiregrass; Section 30, Twn 26 S, Rng 20 E
Memorandum ZN08-1968
Recommendation: Approval with conditions

Mr. Lee Millard gave an extensive explanation of the agenda item. Staff recommended approval with conditions.

Ms. Betsey Jolly, representative, agreed with Staff's recommendation. She noted Staff had requested an $800.00 review fee for the variance request which the applicant did not feel was pertinent as it was a continuation of the prior matter. She requested the $800.00 be refunded. She also indicated the sign variance criteria applied to out parcels as well as in line tenants.

Chairman Gallagher explained Staff would determine the review fee.

Discussion followed regarding the marketing reason for the number of signs; the goal was to provide the tenants with creative signage options; the size of the signage; multiple signs; and vehicles located on the street.

Mr. Joe Richardson, representative, spoke regarding the main street style and design for the project; trees on the site; the tenants were encouraged to be creative in their designs; the backside of the buildings would face the public; and the tenants were encouraged to have two entrances.

There was no public comment.

MR. NURRENBROCK MOVED approval of Staff's recommendation.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

ENGINEERING SERVICES – PROJECT MANAGEMENT

P4 C.R. 54 and I-75 Commercial Variance Amendment-54 West Capital, LLC – Location: On the northwest corner of C.R. 54 and I-75; Section 12, Twn 28 S, Rng 19 E
Memorandum PMA08-166
Recommendation: Approve

Mr. Jim Widman explained the item. Staff recommended approval of the applicant's request to delete Condition 3 from the October 11, 2007, DRC Variance Approval.

Ms. Sue Murphy, representative, agreed with Staff's recommendation.

There was no public comment.

MR. NURRENBROCK MOVED approval of Staff's recommendation and to direct Mr. Widman to provide the Clerk's Office with the correct parcel ID for the agenda item.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

DEVELOPMENT REVIEW SERVICES – DEVELOPMENT REVIEW

P5 Class IIIU – Maricopa, Phases 1 and 2 (SDU08-005), Preliminary/Construction Plan, Stormwater Management Plan and Report, Variance Request, and Alternative Standards Request – Maricopa Development Company, LLC – Location: On the west side of Starkey Boulevard, approximately one mile north of the intersection of S.R. 54 and Starkey Boulevard; Sections 18 and 19, Twn 26 S, Rng 17 E
Memorandum DR08-1330
Recommendation: Approval with conditions

Mr. Frank Schlotter explained the item.

Page One

Mr. Steve Booth, representative, explained on page one of the Variance Request the agenda item stated "required right-of-way of 83 feet from center line" and he felt it should read "60 feet from center line". Starkey Boulevard had already been constructed in other phases of Long Leaf and they were dealing with 120 feet.

Mr. Parikh explained the current preservation corridor still called for 166 feet. The corridor was being revised to state the existing right-of-way which varied from 120 feet to 170 feet. As it currently stood for the approval, the 83 feet still applied.

Mr. Booth explained they were on record stating the applicant felt the requirement was 60 feet, but he understood when the variance was approved the issue would be resolved.

Page Two

Mr. Booth explained in paragraph six the historical filings were cited. He requested information be added regarding Petition 6591, dated July 12, 2006 be incorporated into the historical analysis of the project.

Mr. Scott Lee, representative, explained the last zoning petition in 2006 moved some of the densities around throughout the MPUD and also updated the traffic study since the original traffic study was approved in 2001.

Chairman Gallagher requested a motion be made to revise Condition Six contingent upon Staff's review and approval to add Petition 6591 that was approved on July 12, 2006 by the DRC.

MR. NURRENBROCK MOVED approval as stated by Chairman Gallagher.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

Mr. Booth explained there were several provisions, findings and conditions which addressed the 83 feet. If the variance was approved he felt Staff would need to go back and delete those items.

Mr. Parikh felt that would become a moot point once the new corridor was adopted in July.

Mr. Booth spoke regarding the variance request and indicated if the DRC approved the variance, then all references to the 83 feet being required should be deleted.

Condition 19

Mr. Booth requested Condition 19 be deleted as it referenced approval of any project accessing from a state roadway, and there were none applicable for this project.

MR. PARIKH MOVED to revised Condition 19 to include the wording "if applicable".

Mr. Booth agreed with the revision.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

Condition 34

Mr. Booth requested Condition 34 be revised to delete the language which read "any development of land". He explained the same requirement was included in Condition 36.

MR. NURRENBROCK MOVED approval to strike the duplication.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

Mr. Booth stated he was in agreement with the remainder of Staff's recommendation.

Mr. David Reed spoke under public comment and questioned whether the parcels would fall back under the Long Leaf CDD.

Mr. Lee explained the subject parcel had always been contemplated to be a part of the Community Development District and would remain as part of Long Leaf.

MR. NURRENBROCK MOVED approval of the balance of the agenda item.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

P6 Class I, Walgreen's S.R. 54 (IPR05-062), Variance Request – Sunnyside Properties Too, Inc. – Location: On the northeast corner of S.R. 54 and Dean Dairy Road; Section 09, Twn 26 S, Rng 21 E
Memorandum DR08-1446
Recommendation: Partial Approve

Mr. Frank Schlotter explained the item.

Discussion followed regarding the requested variances.

Mr. Ben Harrill, representative, explained there were two variance requests. One request was from the Right-of-Way Preservation Ordinance. The applicant had previously given 20 feet of right-of-way in accordance with the Board's approval in the original rezoning of the property. The second request involved the buffering. In May 2005 the applicant had requested a reduction to five feet on the parcel which was approved by the DRC. The plan had been modified and the applicant requested the same reduction, but Staff requested there be 10 feet, five feet from the applicant and five feet from the Right-of-Way Corridor. He agreed with Staff's recommendation. He noted in May 2005 the DRC had approved dropping the buffering on the property to 8.5 feet and the applicant wished to reduce that amount to five feet because of the Emergency Service Lane.

Mr. Parikh explained an easement was needed in case the pole was ever relocated.

Mr. Harrill felt the request could be accommodated and would agree to an additional condition that the applicant would provide an easement for the signal pole.

There was no public comment.

MR. PARIKH MOVED approval of the agenda item with an added condition that on the southwest corner of the property the applicant would provide the County with an easement for a future traffic pole relocation.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

P7 Class I, Suncoast Commercial Center, Lot 7 (IPR06-064), Variance Request – Win-Suncoast, Ltd. – Location: On the west side of Ashley Glen Boulevard, approximately 700 feet north of S.R. 54 and approximately 1,000 feet east of Suncoast Parkway; Section 30, Twn 26 S, Rng 18 E
Memorandum DR08-1448
Recommendation: Approval with conditions

Mr. Frank Schlotter explained the item.

Mr. Jerry Figurski, representative, agreed with Staff's recommendation.

Discussion followed regarding the widths; the commercial area; and the expanded pond.

Dr. Octavio Blanco spoke under public comment regarding larger vehicles having a difficult time with the roadway widths; and there was not enough space.

MR. NURRENBROCK MOVED approval of Staff's recommendation.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

P8 Class II, Banyan Senior Apartments (IIPR08-029), Preliminary/Construction Site Plan, Stormwater Management Plan and Report, and Variance Requests – Banyan Senior Apartments, Limited Partnership – Location: On the northeast corner of U.S. 19 and Gordon Drive, Approximately two-thirds mile south of S.R. 52; Section 10, Twn 25 S, Rng 16 E
Memorandum DR08-1457
Recommendation: Approval with conditions

Mr. Frank Schlotter requested the item be continued.

Mr. Jerry Figurski requested the item be continued to July 10, 2008.

MR. NURRENBROCK MOVED to continue the item to July 10, 2008, at 1:30 p.m. in New Port Richey.

There was no public comment.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

P9 Class I, Walgreens at U.S. 41 and Pleasant Plains Parkway (IPR07-093), Variance Request – RKM Connerton, LLC – Location: On the northwest corner of U.S. 41, (Land O'Lakes Boulevard), and Pleasant Plains Parkway/Roaches Run; Section 25, Twn 25 S, Rng 18 E
Memorandum DR08-1477
Recommendation: Approval with conditions

Mr. Frank Schlotter explained the item.

Discussion followed regarding changes to the retention pond and that $3,705.00 would be placed in the Tree Mitigation Fund.

Ms. Arlena Dominant, representative, spoke regarding them.

There was no public comment.

MR. PARIKH MOVED approval of Staff's recommendation.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

NON-VARIANCE PETITIONS
GROWTH MANAGEMENT

P10 High School "III" Comprehensive Plan Consistency Determination – District School Board of Pasco County – Location: On the east side of Handcart Road, 1.75 miles north of Eiland Boulevard, 2.5 miles south of Prospect Road and 4.3 miles south east of St. Leo in east Pasco County; Sections 29 and 30, Twn 25 S, Rng 21 E
Memorandum GM08-357
Recommendation: Approval with conditions

Mr. Sam Steffey explained the item and noted this was a "banked site". Staff recommended approval of the conditions identified within the agenda memo. Condition 4 was revised to read "may require expansion by the School Board" instead of "will require expansion by the School Board". He explained because this was a banked site, development may have already occurred in the area and the School Board would be tapping into the existing system. He recommended approval of the conditions as identified in the agenda memorandum.

Chairman Gallagher asked who would be responsible for transportation.

Mr. Steffey explained that would be determined at the time of the site plan submittal as contemplated by the Interlocal Agreement.

Mr. John Letvin, School Board Representative, agreed with Staff's recommendation and noted the School Board would work with Staff during the school site plan development review subject to the Interlocal Agreement as amended.

Mr. Goldstein said a statement was included within the conditions that "any of the foregoing requirements may be modified by the School Board or the County pursuant to the amended and restated Interlocal Agreement". He felt that should apply to Condition 3 as written, but should also apply to Condition 2 and Condition 4.

Mr. Steffey restated the item to read "pursuant to the Interlocal Agreement". He explained Staff would include the same language within Conditions 2, 3 and 4.

Discussion followed regarding Handcart Road.

Chairman Gallagher asked if the School Board was willing to give the necessary right-of-way in order to construct that portion of Handcart Road.

Mr. Williams stated they typically gave the necessary right-of-way.

Mr. Steffey indicated that would be added as an additional condition.

Discussion followed regarding wetlands in the area.

Chairman Gallagher requested a motion be made to state the School Board would work with the County in the event Handcart Road was constructed prior to the school, to provide the right-of-way in the four-laning of Handcart Road.

Mr. Williams agreed with Chairman Gallagher's request.

MR. PARIKH MOVED approval as requested by Chairman Gallagher.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

Mr. Williams explained the Pasadena Hills Plan envisioned a north-south road on the eastern portion of the subject property. He asked as that developed, how would the alignment work.

Mr. Parikh explained the alignment would be done as the individual villages came in for rezoning.

Mr. Steffey understood the alignments could shift if required due to extenuating circumstances. He understood there was flexibility built into that plan, but would confirm the information prior to the item going before the Board of County Commissioners.

There was no public comment.

MR. PARIKH MOVED approval of the balance of the agenda item.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

DEVELOPMENT REVIEW SERVICES – DEVELOPMENT REVIEW

Mr. Schlotter listed the Consent Agenda:

P11 Suncoast Commercial Center – Pulled from Consent
P12 Florida Medical – Terra Bella – Pulled from Consent – Approved
P13 United Self Storage – Pulled from Consent
P14 Verandas at Seven Oaks – Pulled from Consent
R2 Bexley Ranch MPUD

Dr. Octavio Blanco requested Suncoast Commercial Center be pulled from the Consent Agenda.

Ms. Dorothy Atkins requested United Self Storage be pulled from the Consent Agenda.

Mr. Bruce Kennedy requested clarification for item P12 in the name of Florida Medical – Terra Bella. He explained Mad Hatter was the provider of water and sewer facilities; however the County was the provider for the treatment and disposal services. Under the County's agreement with Mad Hatter, the applicant was required to obtain a receipt for payment of wastewater impact fees prior to the issuance of the building permit.

MR. KENNEDY AND MR. PARIKH MOVED approval to include a condition which required the wastewater impact fee to be paid prior to the building permit for Florida Medical – Terra Bella.

Mr. Kevin Bino agreed with the clarification.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

MR. KENNEDY AND MR. JOHNSON MOVED approval of agenda item P12, Florida Medical – Terra Bella with amended conditions.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

A gentleman requested P14, Verandas at Seven Oaks be pulled from the Consent Agenda.

MR. JOHNSON MOVED approval of the Consent Agenda for R2, Bexley Ranch MPUD.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

P11 CONSENT – Class II, Suncoast Commercial Center, Lot 9 (IIPR06-054), Preliminary/Construction Site Plan – Win – Suncoast, Ltd. – Location: On the east side of Ashley Glen Boulevard, approximately 700 feet north of S.R. 54; Section 30, Twn 26 S, Rng 18 E
Memorandum DR08-1449
Recommendation: Approval with conditions

The item was pulled from the Consent Agenda.

Mr. Frank Schlotter explained the item.

Mr. Jerry Figurski, representative, agreed with Staff's recommendation.

Dr. Octavio Blanco spoke under public comment regarding the building of the project would move the river; illegal activity; the move would violate federal standards; and Pasco needed to be aware of the situation.

Chairman Gallagher asked if the applicant had received an Army Corps permit.

Mr. Parikh explained Staff had worked with Swiftmud who was in agreement with the relocation of Sandy Creek on the east side. He was unsure whether an Army Corps Permit was required.

Dr. Blanco explained the applicant had been working on an Army Corps permit for months; the location of the river may not be moved or altered; the stormwater management plan submitted to Swiftmud used the wrong model; a riverine model should have been used; this was a river not a ditch; the stormwater management plan was based upon a flawed system; this area was historically prone to flooding; the flooding issue remained; entryways were a key item for corporations; blighted areas; developers came in all the time to request variances; and the need for the County to be aware of the overall situation.

Mr. Figurski explained this project had been going through the review process for a few years. The developer had "bent over backwards" in terms of expanding the right-of-way and providing ponds for drainage. The Swiftmud permit was issued and the issues raised by Dr. Blanco were addressed at the Swiftmud hearings with the Administrative Judge ruling against Dr. Blanco. The developer and Staff had worked with DOT in terms of an exchange of property to reroute the ditch.

Mr. Matthew Campo, representative, explained he was not aware of any published document which identified this location as a river. The applicant was going through review by Swiftmud, the DOT and the Army Corps. This was an excavated ditch through wetland systems. He spoke regarding drainage reviews conducted and noted the Swiftmud review had been approved and the DOT had issued their conditional approval for the drainage system. He felt the model used was appropriate for this

application given the nature of the development. They had submitted information for the Army Corps permit.

Mr. Schlotter explained Condition 2d required a copy of approved Swiftmud permits to be submitted to the Development Review Division.

Chairman Gallagher felt if they knew there was an outstanding permit, they should include that item in their approval so it was not missed.

Mr. Goldstein questioned whether the stormwater plans for the project had already been approved.

Ms. Cindy Jolly explained this project was part of the subdivision called Suncoast Commercial which was approved in April. Dr. Blanco had appealed that approval; however at that time, there was discussion regarding the Swiftmud permit and the Administrative Hearing. At the Administrative Hearing the Judge required a condition to be added to the Swiftmud permit regarding a letter of authorization from the underlying property owner to move the ditch. Staff had also added that condition to the County's approval. The drainage was done with the subdivision. This approval was for the individual parcel and that any additional drainage on the site would be directed into the master drainage system. The master drainage system was approved with the subdivision in April.

Chairman Gallagher requested the item be conditioned that the facility would not be issued a building permit until the applicant had received the Army Corps permit as well as any other outstanding permits.

Mr. Figurski agreed with Chairman Gallagher's request.

MR. PARIKH MOVED approval of the requirement as stated by Chairman Gallagher.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

MR. PARIKH MOVED approval of the balance of the agenda item.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

P12 CONSENT – Class II, Florida Medical – Terra Bella (IIPR08-021), Preliminary/Construction Site Plan and Stormwater Management Plan and Report – FMC Land O'Lakes, LLC – Location: On the northeast corner of S.R. 54 and Via Bella Boulevard; Section 29, Twn 26 S, Rng 19 E
Memorandum DR08-1460
Recommendation: Approval with conditions

This item was pulled for discussion and approved under the Consent Agenda.

P13 CONSENT – Class II, United Self Storage (IIPR07-002), Preliminary/Construction Site Plan and Stormwater Management Plan and Report – Amanda Wailey, Jennifer Brewer and John Phillipoff – Location: On the east side of U.S. 19 and south of S.R. 52; Section 10, Twn 25 S, Rng 16 E
Memorandum DR08-1505
Recommendation: Approval with conditions

The item was pulled from the Consent Agenda.

Mr. Frank Schlotter explained the item.

Mr. John Landon, representative, agreed with Staff's recommendation. He noted the applicant had met with some of the residents who objected to the project, with the exception of one issue. It appeared there were some shallow wells north of a retention pond located on the site. He did not believe there would be an issue, but had agreed to review the issue and if there was a problem they would agree to install a slurry trench or would line the north end of the pond. The applicant was not aware whether the wells had been permitted and noted the issue had not come up during the Swiftmud review.

Mr. Neil Dye, two gentlemen, Ms. Dorothy Atkins, and Mr. Ken Hutchins spoke under public comment. Items discussed included: noise generated from the site; traffic generated from the site; well issues; siphoning effects on the wells; contamination of the wells; the power company right-of-way; meetings held with the owner and their representatives; the applicant had addressed the well and erosion issues; the retention pond would have a siphoning effect on the wells; the wells in the area were 25 feet; effects to the water supply; and the need to keep the residents informed.

Discussion followed regarding noise generated from RV storage areas was usually minimal; the applicant had stipulated they would review the well issue; a Type B buffer was required; and the public water supply in the area.

Mr. Landon responded to concerns raised and agreed to meet with the residents again prior to the areas being cut. He explained the pond was a dry pond for seasonal high water. He spoke regarding the residents well concerns.

Mr. Kennedy felt the dry pond would not interfere with the existing hydrologic regime currently at the site.

MR. PARKING MOVED approval of Staff's recommendation.

Chairman Gallagher asked if additional conditions should be added to address the well issue.

Mr. Landon stated the applicant would investigate the issue to determine whether there was a problem with the wells. If there was a problem, they would look into possible solutions such as a slurry wall or the installation of a liner.

Chairman Gallagher requested an additional condition be included that if the applicant found they had interfered with the private wells, the applicant would explore curing methods to be reviewed by Staff and if found acceptable, Staff would issue the building permit.

MR. NURRENBROCK MOVED approval of the additional condition as stated by Chairman Gallagher.

Mr. Kennedy explained the individual wells would be regulated by the Public Health Department who should verify there was no public health issue or impact as a result of the development activity. If mitigation was necessary, the applicant would bring back a suitable mitigation plan for Staff's review and approval.

Mr. Landon stated they would submit information from the Health Department to show the applicant had complied.

THE MOTION WAS WITHDRAWN.

MR. KENNEDY MOVED to require the applicant to investigate the impact on the private wells, verify the information with the Health Department, and if mitigation in the judgment of the Health Department was required, the applicant would submit that plan for approval by County Staff.

Chairman Gallagher questioned problems with water flow.

Mr. Kennedy felt the applicant had agreed to evaluate the flow of water and if installation of a slurry wall or liner system was required, it would be done. He felt that was not as much of a concern as the pond was a dry pond that was above the seasonal high water table. The water supply issue should not be a problem; the bigger issue involved the water quality impact to private wells. He did not feel there would be an issue. The dry pond would not interfere with the ground water system. They may have a water quality problem before they would have a water supply problem. He asked the applicant if they would extend water service into the project.

Mr. Landon said they could, but did not believe they wanted water service.

Mr. Kennedy explained the solution would be to extend the public water supply and put the residents on the public supply.

Mr. Landon felt if there was a problem with the wells, the applicant would be responsible for drilling the wells deeper and fixing the problem.

MR. KENNEDY AMENDED THE MOTION to include the requirement for the applicant to investigate, mitigate and if necessary re-drill or mitigate directly the well impacts.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

MR. NURRENBROCK MOVED approval of the remainder of the agenda item.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

P14 CONSENT – Class II, Verandas at Seven Oaks (IIPR08-015), Preliminary/Construction Site Plan – Flournoy Development Company – Location: On the west side of Ancient Oaks Boulevard, approximately 150 feet south of Eagleston Boulevard; Section 13, Twn 26 S, Rng 19 E
Memorandum DR08-1524
Recommendation: Approval with conditions

The item was pulled from the Consent Agenda.

Mr. Frank Schlotter explained the item. Staff recommended approval with conditions.

Mr. Ryan King, representative, agreed with Staff's recommendation.

Mr. Kumentay Herrod spoke under public comment regarding notification requirements to the area residents; there were no homes built adjacent to the site; and the buffering requirements of the project.

Mr. King spoke regarding the proposed landscaping and buffering of the site.

Mr. Herrod found the landscaping and buffering to be acceptable.

MR. NURRENBROCK MOVED approval of Staff's recommendation.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

P15 Class II, Iovino Bridge Replacement, Preliminary/Construction Site Plan and Stormwater Management Plan and Report (IIPR08-044) – Nicholas and Karen M. Iovino –Location: In West Pasco County, south of Pine Forest Drive, south of S.R. 52, approximately 1.25 miles east of Little Road; Section 07, Twn 25 S, Rng 17 E
Memorandum DR08-1441
Recommendations: Approval with conditions

Ms. Cindy Jolly explained the item. Finding of Fact number two was corrected to read "access to the property is by a 25-foot easement from Pine Forest Drive. Pine Forest Drive is a paved 20-foot wide county-maintained road with 50 feet of right-of-way".

MR. NURRENBROCK MOVED to correct Finding of Fact number two as read into the record by Ms. Jolly.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

Ms. Jolly explained Staff had recommended approval with an additional condition. She was contacted by the Army Corps of Engineers who indicated an Army Corps of Engineer permit was required. She included an additional condition that the applicant also provide prior to site development permit any required Army Corps of Engineer permit.

MR. NURRENBROCK MOVED to include the additional condition as stated by Ms. Jolly.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

Ms. Jolly recommended approval of the remainder of the agenda item.

Chairman Gallagher stated he and Commissioner Cox had met with the applicant and two of the neighbors.

Ms. Karen Iovino, applicant, stated she and her husband wished to live on the property and requested permission to replace the existing wooden bridge which crossed Bear Creek with a culvert system. She noted the bridge had been designed so that there would be no hydraulic impacts to up stream or down stream property owners. They had previously received approval from the Florida Department of Environmental Protection and Pasco County; however the Pasco County approval was apparently issued as a Class One approval and a Class Two approval was needed. She spoke regarding the historic access to the property and agreed with Staff's recommendation of approval.

Mr. Nick Iovino was also present.

Mr. Bill Parks explained he was the previous owner of the property and spoke regarding the existence of the bridge when he purchased the property in 1967. Another bridge was built at a later date on the existing location. There was no other access to the site. He presented photographs of the bridge.

Chairman Gallagher asked if Staff disputed the fact there was a bridge or walkway at that location.

Ms. Jolly stated Staff did not dispute the bridge.

Mr. Parks spoke regarding the photographs displayed and noted the bridge had not been usable for the last few years.

MR. NURRENBROCK MOVED to receive and file the photographs submitted by Mr. Bill Parks.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

Mr. John Landon, representative for the applicant, explained he was asked to design a replacement bridge for the Iovinos which did not impact the homeowners up stream or down stream. He noted it was a flood sensitive area with the last study completed in 1993. The study was currently being updated and he spoke regarding the model used. The applicant proposed to install three box culverts and noted they would not raise the floor of the flood plain. He spoke extensively regarding the proposed bridge replacement and water flow over the bridge.

Mr. Tim Hays, a representative for Mr. and Mrs. Charlie Amero who were adjoining property owners, submitted information to the Committee.

MR. NURRENBROCK MOVED to receive and file information submitted by Mr. Tim Hayes.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

Mr. Hayes explained there was no issue relating to whether the bridge existed and that his client did not oppose the applicant's intention to replace the existing wood-span bridge which crossed Bear Creek. His client also did not object to the Iovino's intention to subdivide or develop their property as per existing zoning classifications and land use designations. He requested clear assurances that the replacement of the existing bridge would not aggravate or compound flooding conditions which existed in the area, and that any resident who saw fit to build in this area as a result of the new bridge would be able to escape the flood area during flood conditions and that emergency/rescue/medical services would be capable of accessing the area. He spoke extensively regarding a FEMA Flood Map and the subject property, the bottleneck effect

of Bear Creek; the proposed bridge would be located at one of the narrowest areas of Bear Creek; any impairment to the flow would impact the immediate area and potentially cause problems up through the basin area; and this was a unique situation. His client hired an engineer to review the report submitted by the applicant for the Florida Department of Environmental Protection. He highlighted items included in the report and noted the plans submitted by the Iovino's engineer indicated the proposed box culvert construction would reduce the cross-sectional area below the elevation of 18 which was the elevation of the roadway crossing by approximately 70 percent. He displayed sketches of the current bridge, the proposed box culverts and spoke extensively regarding the water flow. He spoke further regarding flooding conditions in the area; debris in the creek area; blockages resulting from the box culvert structures; crossing concepts; the U.S. Army Corps of Engineers claimed jurisdiction in this area; flow going over the bridge; maintenance of the box culvert; this was a massive flood basin; trees with shallow roots; and photographs of the area during high flood conditions. The applicants were not satisfied to place their home on the property, but intended to subdivide the land in the future. The DRC had a responsibility for the health, safety and welfare of the residents. He asked how would the residents get out of the area during flooding conditions and the County would not be able to get emergency personnel into the area. It was not in the best interest for the County to permit the bridge, especially with the applicant's intention to subdivide this property with this being the only way in and out of the property. When this was approved as a Class One approval the first condition stated the structure had been reviewed to provide access to one future single-family development and that development beyond that would require a re-review. He requested the condition be placed back in for this approval. There was also a condition in the Class One permit which said if access to the property was granted so that the bridge was no longer required, the bridge would be removed at the owner's expense if directed to do so by the Development Review Committee. He requested that condition also be placed back into the approval. He requested the permit be conditioned upon the applicant receiving all applicable permits, including the Army Corps of Engineers permit. He felt a single box culvert spanning the entire width and height of the creek would alleviate their concerns regarding three smaller culverts. He requested the Committee add the additional conditions if they chose to approve the item. He felt the Committee should seriously consider the study currently underway by Swiftmud to analyze the entire area. He recommended the item be continued to allow the data to be collected.

Ms. Francine Alverez spoke under public comment regarding the applicant's need to access the property; concerns regarding the bridge; the bridge overflowed numerous times; how would the property owners get in or out if the water overflowed; and if the property was subdivided the access would become a roadway.

Mr. Landon questioned whether Mr. Hayes was a professional engineer or if a professional engineer was present that he could cross-examine relative to the hydrology testimony. He requested Mr. Hayes testimony be thrown out as being irrelevant.

Mr. Hayes explained he had distributed copies of a detailed engineering report signed by a licensed engineer which was previously submitted to the Florida Department of Environmental Protection. He also included a signed memorandum from Mr. Larry D. Housel who was a Florida licensed engineer.

Chairman Gallagher asked if the applicant had an opportunity to review the information.

Mr. Landon stated he had not been provided with the report.

Mr. Hayes disagreed and stated a copy of it was submitted to the Florida Department of Environmental Protection in response to their application by Engle Consultants, Inc., and Mr. Larry Housel.

Mr. Al Torrence, attorney for the applicant, explained that Mr. Hayes had not made an appeal based upon the information and had waived the issues raised. He submitted Mr. Hayes letter into the record.

MR. NURRENBROCK MOVED to receive and file a letter submitted by Mr. Al Torrence.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

Chairman Gallagher requested the applicant address some of the issues raised, specifically the bridge flooding and creating a dam effect.

Mr. Landon referred to a letter from Mr. Hayes and noted there was no mention of an engineer in the letter. The letter filed with DEP included two incorrect statements. The first statement referenced two culverts when in fact there were three culverts. The letter also referenced 65 percent less culvert area and today he had stated 70 percent. He explained the bank in the area was irregular. He referred to the diagram and explained the area could be blocked and there would not be much change if any in the flood plain.

Chairman Gallagher asked what effect that would have on the water getting out of the area and causing flooding to the adjoining property owners. He questioned one box culvert versus three box culverts.

Mr. Landon displayed a template of the final model and responded to Chairman Gallagher's concerns. He noted only four percent of the flow would go under the bridge or through the culverts, with the remainder going over the roadway. The applicant wished to clean up the area and to align the creek which would make the low flow much more efficient. The flood plain would not be moved; the bridge elevation would remain the same as would the approaches to and from the proposed culvert. He spoke regarding cost issues involved with the box culverts. As the Iovinos began to use the property they would maintain the culvert which was a specific condition of the DEP permit. He spoke regarding the installation of mitered end sections where the debris would "ride up". In this instance the applicant was unable to do that because they only

had 25 feet. If Mr. Amero would agree to that, the applicant would install the mitered end section, however a portion of that would be on Mr. Amero's property.

Chairman Gallagher asked what was the plan to get the homeowner out if the bridge was under water.

Mr. Landon said the plan would be to get out before it was underwater. There was an escape route on the other side where the neighbor had prohibited access. The County Road downstream also went under water during a 100 year storm.

Ms. Iovino referred to a map of the area and explained if there was an emergency situation, they could exit off the property through a road shown on the map. She did not have the right to use the roadway without the permission of the Saddleridge residents. If the bridge went a foot under water, she felt she could still get off the property by submerging her land cruiser across the bridge. She could also park a vehicle on the easement and walk across the bridge.

Ms. Michele Baker noted that area was flooded in 2004 during the hurricanes and the rainfall associated with them.

Ms. Jolly explained the 100 year flood elevation for the area was 22.8 feet and the bridge elevation was 18.8 feet.

Mr. Landon explained in 2006 the high water mark was 19.24.

Mr. Johnson spoke about the fire departments access to this property. Any bridge or replacement bridge would need to be strong enough to allow a fire engine.

Mr. Landon stated the bridge would comply with that requirement. He spoke regarding the type of permitting required for the bridge; this bridge would be used for vehicular use; and this request was for only one home.

Chairman Gallagher asked if the applicant would agree to a condition that this approval would be for one single-family dwelling.

Mr. Landon agreed.

Mr. Goldstein suggested the condition read one single-family dwelling unless otherwise approved by the DRC or the Board of County Commissioners.

Ms. Iovino said she did not want to have a special condition added. Under the developer's request it stated approval to replace the existing timber bridge for access to one future single family dwelling unit.

Discussion continued regarding the bridge going under water; the applicant could take the liability to build at the site; and concerns for multiple homes being built.

Ms. Jolly stated she would add a condition to state this approval was for access to one single-family home unless otherwise approved by the DRC or the Board of County Commissioners.

MR. NURRENBROCK MOVED approval of the additional condition as stated by Ms. Jolly.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

Mr. Goldstein noted the applicant had raised an objection to not having adequate time to either examine the report or to cross-examine the engineer.

Mr. Landon said he would like to cross-examine the expert.

Mr. Goldstein asked if he was requesting a continuance.

Mr. Torrence felt it was dependent upon the Board accepting the other matter as presented as evidence.

Mr. Goldstein explained the DRC had the authority to consider whatever evidence was brought before them. The DRC weighed the evidence on the strength of the testimony and who was actually testifying. If the applicant wished to retain the right to cross-examine that person, or re-examine the report, the applicant had the ability to request a continuance to have that person appear before the DRC.

Mr. Torrence stated he did not wish to continue the matter.

Ms. Baker explained in 2003 and potentially in 2004 this area might have been flooded for two or three months. She asked if the applicant realized that was the kind of timeframe for access to be blocked.

Mr. Landon stated they were aware, but did not feel access would be blocked for that period of time. The 100 year flood was extreme.

Mr. Kennedy asked if the travel way would be paved across the structures.

Mr. Landon stated they would use crushed concrete within a pavement section.

Mr. Kennedy felt both engineers had concluded that the structure proposed no significant hydraulic impact on the flood state. The real issue was the access issue.

Ms. Jolly noted subdivision roads were not elevated to 100 year flood stage. Roads could be built below the 100 year flood stage, but the water would only be a few inches in depth by running the water off the roadway.

Mr. Parikh explained there would be water over the culvert. He spoke regarding possible obstructions because of debris that was not cleared and that the applicant needed to obtain an Army Corps permit.

MR. PARIKH MOVED approval of Staff's recommendation.

Mr. Goldstein clarified Mr. Torrence had submitted a document and claimed that Mr. Hayes had waived his right to raise his arguments. He asked Mr. Torrence if he had any case law which indicated the failure to prosecute one proceeding somehow waived their right to a subsequent County proceeding.

Mr. Torrence felt the proper term would be estoppel rather than waiver. They had the opportunity to raise these issues, but elected to withdraw because they did not want to spend the money for the further engineering studies. He felt they were estopped to raise that issue here.

Mr. Goldstein said he was not aware of any law that stated if an argument was waived in a DEP proceeding, that they have also waived arguments in a County proceeding.

Mr. Torrence stated he did not bring case law to support that position.

Chairman Gallagher asked Mr. Hayes if his client was willing to allow the applicant to install mitered ends to allow the debris to flow over. He asked how much room was needed.

Mr. Landon felt they would need 10 to 15 feet to construct a mitered end section upstream with "cow catcher" bars on top to catch the debris and allow flow.

Mr. Hayes explained they were still concerned with the three box culverts and the possibility that those would become blocked. If those became blocked, the water had no where else to go but over the edge and there could be flooding. He felt a full one box culvert that expanded the entire width and height of the opening was a better way to go. The applicant's engineer indicated it was a cost matter. He felt it would lessen the potential for blockage in the creek and aggravated flood conditions in the area then it would be a cost well worth the expense.

Mr. Landon felt the mitered ends would keep the debris away from the entrance. It was a cost issue. Currently, there was very little flow going under the road section. If that were blocked, there would be a minor backup until someone removed the debris.

Mr. Hayes explained there was a second condition included in the Class I permit that was taken out in the Class II permit. He requested the condition be placed back in the conditions of approval.

Chairman Gallagher recalled the language was that if there was another access they would remove the bridge. He did not know why they would require that. If the applicant

came in and placed more homes on the property, they would need to address that issue.

Ms. Jolly clarified the motion did include the two additional conditions requiring the applicant to obtain an Army Corps permit prior to site development and that they would acknowledge this approval was for one single-family house unless otherwise approved by the DRC or BOCC.

Mr. Parikh stated that was correct.

Discussion followed regarding the mitered end for the bridge.

Mr. Goldstein explained Chairman Gallagher had noted the applicant would do this at their own risk. He asked if the DRC wished to include a condition to holding the County harmless from any liability resulting from the installation of the bridge.

Chairman Gallagher requested the language be included.

MR. PARIKH AMENDED THE MOTION to include the addition of the hold harmless language.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

P16 Class II, Elementary School "V" (IIPR08-042), Preliminary/Construction Site Plan – District School Board of Pasco County – Location: On the south side of the proposed Overpass Road; Section 35, Twn 25 S, Rng 20 E
Memorandum DR08-1538
Recommendation: Approval with conditions

Mr. Frank Schlotter stated the item was withdrawn.

Discussion followed regarding a recent newspaper article concerning access to the site.

P17 Class IV, Bowman's Mine (MPI08-001), Class I Mining Permit – Bowman Ranger, LLC – Location: On the north side of Bowman Road, approximately one mile east of the Suncoast Parkway, one-half mile west of U.S. 41, and one mile south of County Line Road, Section 02, Twn 24 S, Rng 18 E
Memorandum DR08-1548
Recommendation: Approval with conditions

Mr. Frank Schlotter explained the item. Staff recommended approval with conditions.

Mr. Jerry Figurski, representative, agreed with Staff's recommendation. He noted a number of residents were present regarding the item and requested the item be continued to allow the applicant to meet with the residents.

Chairman Gallagher suggested the item be continued to the July 10, 2008, meeting in New Port Richey.

Ms. Patricia Hopkins, Ms. Juanita Nipper, Ms. Cheryl Johnson, Mr. Darwin Johnson, Ms. Julie Harris and Mr. Fred Harris spoke under public comment regarding the request. Items discussed included the residents moved to the area to live in a pastoral setting; concerns with the mining operation; the amount of dust, dirt, debris and noise from the site; breathing concerns; health hazards caused by the dust; the lifestyle of the residents being effected; horses in the area; the developer was trying to get a return on his investment; the mining should not be allowed at the expense of the bordering property owners; the letters of no objection were not clear and the residents did not know about the mine; no guarantees a housing development would happen; impacts to the local wells; constant ground water testing; mosquito control; proximity to the mining operation; the hours of operation for the mine; traffic generated from the site; clean up after the mine; the neighbors had rescinded their letters of no objection; in May Staff recommended the variance be denied; the only people benefiting from Bowman Mine were the investors and developers; negative impacts to the area; notification to the residents; bordering properties; horse farms in the area; respiratory problems to people and animals; mosquito borne diseases; homeowners would be unable to sell their property; the mining permit was for five years; and possible flooding in the area.

Mr. Goldstein spoke regarding Condition 16 and asked what road it referenced.

Ms. Jolly stated it was Bowman Road.

Mr. Figurski requested the item be continued to allow the applicant to meet with the residents.

Discussion followed regarding a date for the possible continuance.

MR. NURRENBROCK MOVED to continue the item to August 14, 2008, at 1:30 p.m. in Dade City.

Discussion followed regarding the parcels owned by the applicant.

Mr. Kennedy explained typically on this type of request, a condition was included that the owner/developer was responsible for mediation of any private wells within 500 feet.

MR. KENNEDY MOVED to include an additional condition that the applicant would be responsible for the mitigation of any wells within 500 feet of the property line that ceased to function or that were not eligible for mediation by Swiftmud.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

Chairman Gallagher called on the motion regarding the continuance; the vote was unanimous and the motion carried.

P18 Class II, Park at Wellington Apartments (IIPR07-066), Preliminary/Construction Site Plan – Holiday Park Land, LLC – Location: Approximately 300 feet west of U.S. 19 and approximately 180 feet north of Sunray Drive; Section 30, Twn 26 S, Rng 16 E
Memorandum DR08-1583
Recommendation: Continuance Requested

Mr. Frank Schlotter recommended the agenda item be continued.

Mr. Robert Williams, applicant, explained the applicant had been informed this project would not be an affordable housing or state subsidized project as the funding was not approved. The developer wished to meet with the residents to address their concerns. He requested the item be continued to August 28, 2008.

MR. NURRENBROCK MOVED to continue the item to August 28, 2008, at 1:30 p.m. in New Port Richey.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

REGULAR

GROWTH MANAGEMENT

R1 Small-Scale Comprehensive Plan Amendment CPAS08(02) Taylor - Pasco County Board of County Commissioners – Location: In northeast Pasco County at the southeast corner of the New York Avenue and LaPlatt Lane intersection; Section 25, Twn 24 S, Rng 16 E
Memorandum GM08-285
Recommendation: Approve

Mr. Sam Steffey explained the item. Staff recommended approval to resolve the conflict zoning by changing the future land use from Res-6 to CON.

Discussion followed regarding the surrounding area.

Ms. Cindy Jolly felt this was the best use for the property and noted the applicant had always complied with all of the requirements.

Mr. Charles Taylor, applicant, explained it was mistake to change the property in the first place, and wanted the property to go back to the original zoning.

Mr. Steffey explained the zoning had been C-2.

Chairman Gallagher clarified they were trying to bring the land use into conformity with the zoning.

Mr. Steffey stated that was correct.

There was no public comment.

MR. NURRENBROCK MOVED approval of Staff's recommendation.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

PLACED ON THE CONSENT AGENDA

R2 Bexley Ranch MPUD, Master Planned Unit Development Master Bicycle and Pedestrian Plan – NNP – Bexley, Ltd. – Location: In South Central Pasco County, east of and abutting the Suncoast Parkway, approximately two miles north of S.R. 54; Sections 03, 04, 05, 06, 07, 08, 09, 10, 11, 15, 16, 17, 18, 19, and 20, Twn 26 S, Rng 18 E
Memorandum GM08-349
Recommendation: Approval with conditions

Approved under the Consent Agenda.

ADDENDUM

Pasco Town Centre Development of Regional Impact/Application for Development Approval – The Shailendra Group, LLC
Memorandum GM08-374
Recommendation: Continue to August 14, 2008, 1:30 p.m., in Dade City

Mr. Sam Steffey requested the item be continued to August 14, 2008, at 1:30 p.m. in Dade City.

Ms. Donna Feldman, representative, agreed with the continuance.

There was no public comment.

MR. NURRENBROCK MOVED to continue the item to August 14, 2008, at 1:30 p.m. in Dade City.

Chairman Gallagher called on the motion; the vote was unanimous and the motion carried.

DEVELOPMENT REVIEW SERVICES

Agenda items R3 through R10 were noted.

R3 NOTED ITEM – Class I, Honors Contractors (IPR07-114), Preliminary/Construction Plan and Stormwater Management Plan and Report – Bowen Family, LLC – Location: West of Crestview Boulevard, approximately 225 feet north of its intersection with S.R. 54; said intersection is approximately 3,000 feet west of Rowan Road, Section 16, Twn 26 S, Rng 16 E
Memorandum DR08-940
Recommendation: Not Applicable

R4 NOTED ITEM – Class III, Thousand Oaks East, Phase 5 (SDU04-089), Construction Plan – Sunfield Homes, Inc. – Location: In West Pasco County, on the north side of Trinity Boulevard and at the east end of Chittamwood Boulevard, east of Little Road; Section 26, Twn 26 S, Rng 16 E
Memorandum DR08-1015
Recommendation: Not Applicable

R5 NOTED ITEM – Class II, Hillcrest Preserve Commercial (IIPR07-118), Construction Site Plan – Hillcrest Property LLP – Location: On the northwest corner of S.R. 52 and the proposed Old Pasco Road Extension; Section 07, Twn 25 S, Rng 20 E
Memorandum DR08-1342
Recommendation: Not Applicable

R6 NOTED ITEM – Class III, Longleaf Neighborhood IV (SDU07-057), Preliminary Plan Amendment, Construction Plan and Stormwater Management Plan and Report – Crosland Longleaf, LLC – Location: Approximately one mile north of S.R. 54, on the west side of Starkey Boulevard; Sections 17, 18, 19 and 20, Twn 26 S, Rng 17 E
Memorandum DR08-1458
Recommendation: Not Applicable

R7 NOTED ITEM – Class I, CVS Meadow Pointe, Tract 9, Phase 2 (IPR07-099), Preliminary/Construction Site Plan – OPC Retail Partners, LLC – Location: On the southeast corner of County Line Road and Mansfield Boulevard; Sections 32 and 33, Twn 26 S, Rng 20 E
Memorandum DR08-1476
Recommendation: Not Applicable

R8 NOTED ITEM – Class III, Hidden Ridge Subdivision (SDU08-015), Construction Plan and Stormwater Management Plan and Report – Lexington Homes, Inc. – Location: On the northwest corner of the intersection of Ridge Road and Moon Lake Road; Section 29, Twn 25 S, Rng 17 E
Memorandum DR08-1478
Recommendation: Not Applicable

R9 NOTED ITEM – Class I, Foggy Ridge West (IPR07-115), Preliminary/Construction Site Plan and Stormwater Management Plan and Report – Francis M. and Mary J. Liner – Location: On the west side of Foggy Ridge Parkway, approximately 250 feet south of S.R. 54; Section 33, Twn 26 S, Rng 19 E
Memorandum DR08-1519
Recommendation: Not Applicable

R10 NOTED ITEM – Class II, The Groves at Wesley Chapel, Phase 2 (IIPR07-033), Nonsubstantial Amendment – Oakley Grove Development – Location: On the east side of Oakley Boulevard, approximately 1,870 feet north of Wesley Chapel Boulevard, Sections 06, 07, and 12, Twn 26 S, Rngs 19 and 20 E
Memorandum DR08-1527
Recommendation: Not Applicable

RECESS

THE COMMITTEE RECESSED AT 2:55 P.M. AND RECONVENED AT 3:05 P.M. ALL MEMBERS WERE PRESENT.

ADJOURN

The Committee adjourned at 4:37 p.m.

(SEAL)

DEVELOPMENT REVIEW COMMITTEE
REGULAR MEETING
JUNE 26, 2008

Prepared By: _____
Donalee Schmidt, Deputy Clerk